

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

QVC, INC. AND CORNERSTONE BRANDS, INC., *Complainants*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

**DOCKET NO. 25-09**

Serviced: November 21, 2025

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**ORDER OF:** Mary Apostolakos HERVEY, *Administrative Law Judge*.

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**ORDER GRANTING IN PART JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER**

On November 13, 2025, the parties filed a Joint Motion for Entry of Protective Order. (Motion, Dkt. 19.) The motion states that entry of a protective order “is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” (Motion, Dkt. 19 at 1.)

The Initial Order issued in this proceeding states: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” (Initial Order, Dkt. 9 at ¶ 31.)

The proposed protective order is reasonable; however, the parties should note that confidential materials filed in the proceeding are addressed in the initial order:

32. *Use in the proceeding* --If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

(Initial Order, Dkt. 9 at ¶ 32.)

Moreover, to the extent that the proposed protective order refers to filing dates that conflict with the Commission’s Rules, the Rules shall apply. When a non-dispositive motion is filed, a response must be served and filed within 7 days after the date of service of the motion. 46 C.F.R. § 502.71(b). Contrary to the terms of the proposed protective order at paragraph 9(c), if a motion is filed in this proceeding contesting a designation of attorneys’ eyes only (“AEO”) or confidentiality, a response to the motion must be served with the opposing party and filed with the Commission within seven (7) days of the motion. *Id.* Similarly, when confidential versions of documents are filed with

the Commission, a public version of the document must be filed within three (3) business days thereafter. 46 C.F.R. § 502.5(a)(2)(ii). Only the portions of documents containing confidential material may be redacted in the public version. 46 C.F.R. § 502.5(a)(2)(iii).

The parties should note that after the initial decision is issued, I may not have authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

The parties have established good cause to enter the proposed protective order. Accordingly, the joint motion is **GRANTED IN PART**, and it is hereby **ORDERED** that the protective order attached to the motion be entered subject to the modifications set forth herein.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S  
Date: 2025.11.21 08:00:23 -05'00'

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Mary Apostolakos Hervey  
Administrative Law Judge